

Original article

Political settlements and the historical development of sand governance in Morocco

Lahcen Ameziane^a, Bert Suykens^{b,*}^a Department of Sociology, Mohammed V University, Rabat, Morocco^b Conflict Research Group, Department of Conflict and Development Studies, Ghent University, Belgium; Chr. Michelsen Institute, Bergen, Norway

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ABSTRACT

Discussions on sand in Morocco often centre on illegal extraction by sand mafias. This article aims to understand the historical formation of sand extraction near Rabat and the interrelation between legal and illegal extraction. Using a political settlements framework, we aim to contribute to the literature on sand governance. We show how the development of legal frameworks for sand extraction have been closely tied to political settlements and infrastructural development as a key component of the settlement's configuration. This dates back at least to the French Protectorate's urban policy of the "Grands Chantiers" which saw the emergence of the first law pertaining to sand quarries, but can also be seen in more recent times under Mohammed VI, with a resurgence of a public policy of large-scale infrastructure, but also a new sand law. Moreover, the shifts in clientelist politics as part of political settlement development heavily impacted both on the elites engaged in sand mining, as well as the capacity of these elites to engage in both illegal and/or legal sand extraction. Under the current settlement, a new class of businessmen holding private titles to (sand) land have become key players in sand extraction, at the detriment of (military) elites who used to extract sand on state and communal lands, using their close connections to the *Makhzen* state to allow for illegal extraction. Our article shows that efforts for sustainable sand governance should first takes into account the political relations enabling particular forms of legal and illegal extraction before implementing technical solutions.

1. Introduction

Sand is a recent arrival in both policy and academic circles focusing on extractive industries and development minerals. While subsumed under the category of development minerals (Franks, 2020), sand itself can be said only to have come to the table after the 2019 UNEP report on sustainable sand mining (UNEP, 2019) and the 2017 Nature article on the looming tragedy of the sand commons (Torres et al., 2017). Illegality and mafia are keywords when it comes to analyse sand and sand governance (Harriss-White and Michelutti, 2019; Hoffmann, 2021; Rege, 2016). In Morocco, discussions around sand have focussed on illegal beach extraction by sand mafias and 'a syndicate second in size only to Morocco's drug mafia'. (Abderrahmane, 2021, 2022; AFP, 2019; Maroc: Razia Sur Le Sable, 2019; "Safi : La Guerre Du Sable," 2005). Such framings play a role in making sand a global urgency and connect together sand extraction processes ongoing in different parts of the world (see also Lamb, this issue). However, they can also stand in the way of a fine-grained analysis of sand governance, where legal and

illegal practices, as well as licit and illicit ones (Abraham and van Schendel, 2005; on sand, see: Hougaard and Vélez-Torres, 2020; Hougaard, this issue), often come together. Conventional understandings can also silence how state regimes can be involved both in legal and illegal sand extraction. Moreover, little attention has been paid to the historical trajectories of sand, and the way that governance infrastructures for sand have evolved over time. Sand governance often has a long history which enlightens contemporary governance practices. Understanding sand's history is also important if we want to better grasp the nature of (il)legality in sand commodity chains and the application of sand-related legal frameworks.

This paper focuses on the historical political economy of sand quarries in the Rabat-Kenitra area. It aims to understand the emergence of a legal framework for sand mining and to place it in wider processes of state and economic development in Morocco. It also shows the connections between illegal and legal sand mining in the area.

We argue that sand operations can only be understood in the context of shifting power relations at the heart of the Moroccan state, which

* Corresponding author.

E-mail address: bert.suykens@ugent.be (B. Suykens).<https://doi.org/10.1016/j.exis.2023.101245>

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directly impacts both the legal framework, and the elites' differentiated capabilities to circumvent it and negotiate with state administrations. Using the language of the political settlement literature, we show that the presence of horizontal relationships between the *Makhzen*¹ and sand quarry operators in the post-colonial period enabled illegal extraction. With the shifts in political settlement at the very end of the 20th century, most of these horizontally located quarry operators were pushed out. A new class of vertically integrated sand operators and quarry owners became dominant. However, as they are not a part of the horizontal coalition supporting the settlement, they are less likely to be displaced by changes in the settlement, while at the same time have to find security elsewhere. At the same time, this shift from horizontal to vertical (sand) relations facilitated the implementation of sand law.

The rest of the article will be organized as follows: first we will discuss the framework on political settlements and extractive governance and how it applies to sand. We will then focus on the political settlements and provide a historical overview of political settlements to show the way sand law and sand extraction practices were (not) impacted by the change in settlement. In the last section we show the particular importance of private land titles (inherited from the political settlement in the early 20th century) in understanding the relation between the current political settlement and sand extraction. We conclude how local villagers are at the same time included as (vertical) clients of the political settlement as pertaining to sand, while being progressively sidelined.

2. Political settlements, extractives governance and sand

This article draws heavily on the political settlement approach to extractives governance by Bebbington et al. (2018, p. 7; di John and Putzel, 2009; they draw extensively on key political settlements work by: Hickey, 2012; Khan, 2010). As they argue:

a focus on political settlements draws attention to the ways in which governing relations are negotiated among economic and political elites. Such negotiations produce distributions of economic and political opportunity that reflect the bargaining power of these different elites.

In particular Bebbington et al.'s interest in the historical formation and transformations of political settlements and their implications for extractive governance are taken forward here. As they argue: '[t]he logic of the political settlements literature implies that the ways in which natural resources (or in our case, extractive industries) are governed would be a function of the political settlement.' (Bebbington et al., 2018, p. 10). What we aim to show is how shifting political settlements enabled particular legal frameworks, and allowed particular elites to gain access to (particular forms of) sand exploitation in our case study area. In doing so we put particular emphasis on both horizontal and vertical linkages which help to explain these shifts, although our focus is less on excluded factions than in Khan's (2010, pp. 64–69) original formulation.

There are also differences to point out between sand and the extractive industries studied by Bebbington et al. For all their attention to diversity, they focus on countries where 'the mining and hydrocarbons "policy domain" has been the key national political domain' (219).

¹ The *Makhzen* is an elusive concept. It denotes a 'centralized political system with the sultan (later king) at center of a structure [, including military, administrative and religious elites, and rural powerholders...T]hroughout its development, makhzen has shifted from its literal meaning as the government's treasury to a sociopolitical interpretation as "a reservoir of power." This power consists of the political authority of the government and the army, in addition to, social symbolic authority represented by the sultan as the head of religious power' (Daadaoui, 2011, p. 42; see also: Leveau, 1985; Montagne, 1930; Pascon, 1977).

In contrast, controlling sand, we hypothesize, cannot allow central level authorities to 'finance strategies to remain in power' (Bebbington et al., 2018, p. 5). Still, it might play key roles in the financing of local or regional politics where (illegal) sand forms a key asset in local or regional political marketplaces/settlements (e.g. for India, see: Harriess-White and Michelutti, 2019). Countries also might not be thought of to be dependant on sand, as in resources curse arguments quite central to Bebbington et al.'s argument. Hence, while we show the impacts of national political settlements on sand extractive policies and, equally important, their implementation and the everyday operation of sand quarries, we do not study the adverse or positive effects of sand extraction on political settlements themselves. Sand, in most cases, and certainly also in the case studied here, cannot make or break national political settlements.

Using the case of sand, we claim the political settlements approach is relevant to conceptualise resources which have a less dominant social role than e.g. oil, gold or diamonds. Also mundane resources such as sand are highly reflective of national political settlements and the legal realities and clientelist relations emanating from these. Given the role of infrastructural development in broader development strategies, and given that sand is hardly traded across international borders, such infrastructural development policies are predicated on a steady internal sand supply. As such, sand counts as a development mineral: 'minerals and materials that are mined, processed, manufactured and used domestically in industries such as construction, manufacturing, infrastructure and agriculture' (Franks, 2020, p. 453). While sand remains of the radar, concrete infrastructure is ubiquitous in development policy. As recent studies have shown that construction sand is hardly ubiquitous (Peduzzi, 2014; Torres et al., 2017; UNEP, 2019), and ensure its steady supply is likely to become an increasingly important policy priority.

We foresee that the political settlement and the relations between political and economic elites at the heart of it are likely to shape sand policies and their implementation. At the same time, national elites can combine this interest in sand-based development by controlling who has access to rents from sand mining, either through licensing, or through allowing illegal extraction. Moreover, political settlements change can lead to changes in the legal framework for sand extraction and in elites gaining access to sand extraction opportunities. This can also lead to shifts in the need of infrastructural development, giving rise to sand booms and busts.

Morocco is an excellent place to test this framework, given interest in (concrete-based) infrastructural development at least dates back to the French protectorate (1912–1956) period and the *grands chantiers* policy. Likewise, contemporary sand production estimates (Fig. 1) highlight that while sand extraction has increased over the decades, the sand boom is not as spectacular as elsewhere and did not emerge from a very low baseline. This reflects that there is a long history of using infrastructure and sand to *modernize* Morocco.

3. Methodology

Field research for this project was undertaken between June and November 2021 as part of a larger project on sustainable sand mining in Morocco and Tanzania (see Shitima and Suykens, 2022). Field research took place in the province of Kenitra. This area has multiple sand quarries located closely to (but non on) the beach, as well as dredging operations in the Sebou River and extraction on dry riverbeds. Illegal beach sand extraction also occurs. That said, our field research focussed on a contiguous stretch of more than 20 sand quarries, most of which operate with a licence. The quarries vary in size from 2 to more than 20 hectares. They are close to an Offshoring Industrial Zone known as the Atlantic Free Zone (AFZ) launched in 2012 and which drove a spectacular urban explosion in surrounding areas, particularly in Kenitra (Laouina, 2019). Targeted quarries are currently the main suppliers of sand in the Rabat-Kenitra area, supplying, around 90 per cent of sand in the region according to informants. Notwithstanding their proximity to

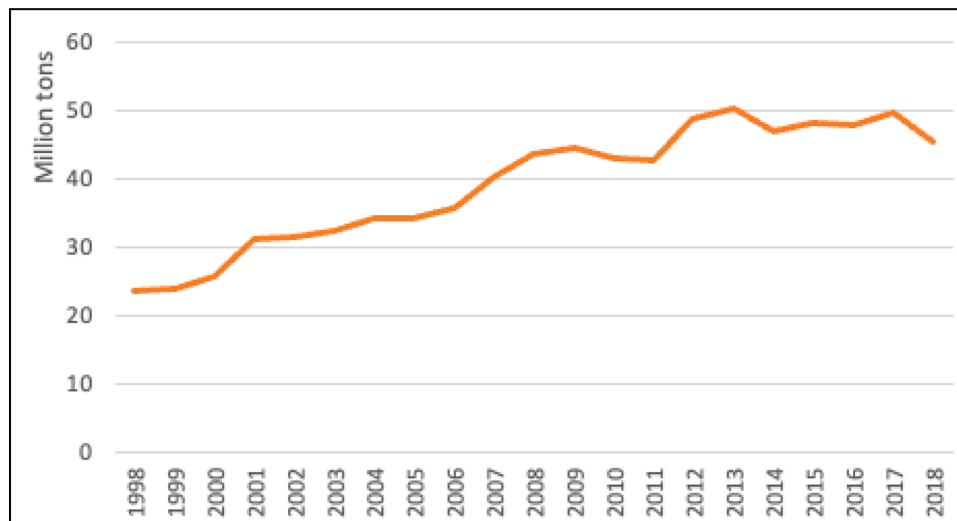


Fig. 1. Estimated sand production/extraction in Morocco (1998–2018).

Source: based on cement data production from USGS (2022). For more details on methodology, see Katz-Lavigne et al., 2022.

Kenitra and the Atlantic Free Zone, the villages adjacent to the quarries have retained their rural character.

This article is mostly based on semi-structured interviews. Respondents included people directly involved in the sand economy such as quarry owners, sand transporters and their drivers, bulk stockpilers, and retail sellers, but also government agents at the local and national levels, as well as civil society actors and academics engaged in citizen activism and research for the preservation of the coastal environment. We also interview members from communities neighbouring the sand quarries. Of key importance in the interviews was not only the current state of sand mining in the area, but also the historical development of sand mining in the area and the region. The research also included a close study of the evolution of the legal framework related to sand mining.

Case study research in Morocco was challenging due to the fact that illegal extraction activities still take place nearby Kenitra. This made it challenging for respondents to distinguish illegal and legal practices. The latter also reflects the persistence of informal practices in legal quarries, which we address below.

4. Political settlements, sand law and sand extraction practices

While there has been little attention to political settlements in Morocco (but see: Gallien, 2020), we can delineate the operation of a number of distinct political settlements since 1900. We will follow a chronological approach, first outlining the political settlements key features—focusing on economic and political elites and on the role of infrastructure—, before turning to sand law and discussing sand extraction practices, both within and beyond state law. As we will show the political settlement at the centre, and in particular the composition of elite networks, and the presence of an ideology of infrastructural development at its core are key components to understand both the development (or non-development) of legal frameworks of sand, their implementation and on the ground sand extraction practices.

4.1. The French protectorate: infrastructural development and the development of sand law

The French protectorate (alongside a Spanish protectorate in the North) emerged in 1912 after long-standing power struggles amongst European powers (Guillen, 1967; Rivet, 1979). It was centred on a French-modelled and French-controlled bureaucracy, with the sultan in a largely symbolic position. French economic and settler elites and

interests laid central to the political settlement, although Moroccan elites were gradually integrated and trained to be part of the protectorate administration (Regnier, 1975). While agriculture remained a key focus, urban transformation played a central role, translating in a first interest in sand governance. Other forms of mining, which accounted for about a third of the Protectorate's exports (Eyssautier, 1952; see also: Ayache, 1956), led to substantial conflict between European powers aiming to control Moroccan mineral reserves. The sultan sought to benefit from these conflicts to avoid occupation (Rivet, 1979). Resistance against the protectorate would never abate and culminated under King Mohammed V. There were great contradictions about how to manage the country within the resistance (Wyrzten, 2009). The king was supported by the nationalists and returned triumphantly after exile and was fully restored in his pre-protectorate role at the independence in 1956 (Ameziane, 2015; Miller, 2013; Vermeren, 2016; see also: *Acte Général de la Conférence Internationale d'Algerias*, 1906).

The first law— or *Dahir*² — dated 5 May 1914, governing quarries—including, but not limited to sand—in Morocco, dates back to the period of the French Protectorate (1912–1956). The vision for Morocco of the first French Résident was 'firmly planted in a setting of power plants, railroads, concrete and steel' (Miller, 2013, p. 90). Urbanization, and 'modern' urban planning at the core of the political settlement, with public works being one of only two departments—the other being finance—created at the onset of the protectorate bureaucracy in 1912 (Ayache, 1956; Miller, 2013). This department would spearhead the urban policy of the *Grands Chantiers*, which resulted in the construction of a dozen new cities juxtaposing with old "medinas" of Rabat, Casablanca or Kenitra (Masson, 1972; Rabinow 1995). As Miller (2013, p. 94; our emphasis) argues in her political history of Morocco:

Architecture, urban design, and the protection of the Moroccan patrimony were particular concerns of the Résident-Général, and he invested important resources in them. (...) *Armed with a set of draconian dahirs that empowered him to "scandalously" expropriate whatever he needed*, [Henri] Prost³ went to work; in the period from

² Dahir is the name for a Moroccan king's legislative act (publishing laws and decisions). Since independence, Dahir has been used in more or less interchangeably with the term king's decree.

³ Member of the French Society of Urbanists and Architects, assigned in 1914 by Lyautey as Director of the service of design and architecture of the city of Casablanca.

1914 to 1923, nearly every major Moroccan city was radically reshaped by his hand.

The Dahir of 1914 was thus a key moment, not only as the starting point for sand governance in Morocco, but as a foundation to this radical reshaping of the Moroccan city as the centre-piece of the protectorates political settlement. It reflected the emergence of the public works department and his general director endowed with the power to oversee quarry activities and enable a steady supply of sand to support concrete-based infrastructure projects.

Changes were subsequently made to Dahir to regulate overlapping powers vis-à-vis other state institutions that were emerging. The Dahir of 25 June 1917 for instance stipulated that extraction from a quarry located within the urban perimeter could only begin after authorization by the Director General of Public Works, but with the consent of the head of municipal services. Another Dahir (7 October 1929) stipulated that the hygiene of workers and the public—another key component of modernistic urban planning (Rabinow, 1995)—had to be ensured. The powers of the Director General of Public Works were expanded to imposing sanctions on violators. Following these initial legal initiatives, the evolution of the legal regime on sand quarries was halted for nearly a century.⁴

While it is hard to find concrete evidence of the operation of sand quarries in the protectorate period, it seems that for the *Grand Chantiers* in particular, sand extraction came under the direct control of the Director General of Public Works. Mining was executed mainly by those companies engaged in the infrastructure projects themselves, which of course included the Protectorate administration itself. Sand at the time—unlike other minerals like Cobalt or Manganese (see above)—does not seem to have created tensions between the Protectorate and the King.

4.2. The early post-independence period: standstill and control under the ministry of the interior

The 1956–1973 post-independence period was marked by a struggle between local political parties and the King (Mohammed V, and from 1961; Hassan II) (Leveau, 1985; Regnier, 1975; Vermeren, 2016; Zartman, 1967), while French interest remained the dominant economic force (Belal, 1968; Oualaalou, 1969; Piveteau, 2018; Saul, 2016). The monarchy would emerge as the dominant actor from this unstable period, taking control of the central government (*Makhzen*) and stabilizing the political settlement (Miller, 2013; Regnier, 1975). Central to our story of sand is that the early post-independence period was focused on rural development rather than urbanization (Leveau, 1985). The century-long status quo in sand law was partly due to the relatively slow pace of construction and public works in the aftermath of independence (Ameziane, 2021; Bogaert, 2018), making sand seemingly ubiquitous in the face of stable demand. Moreover, the French legislation also remained a component of the post-colonial political settlement during Hassan II's reign.

However, important seeds were already planted which continue to be relevant up to today. The Ministry of the interior, the heart of the post-colonial *Makhzen*, firmly under the King's control, became the central locus of power (Ameziane, 2013; Leveau, 1985; Waterbury, 1975). It maintained close oversight over the other ministries, including the Ministry of equipment and public works governing quarry operations. The placing of an urban planning and public housing department within the Ministry of Interior, made the King also a central player in urban

infrastructural development (Abou Hani, 2013; Ameziane, 2021; Leveau, 1997). As a result, while the protectorate's framework for sand extraction remained in place, sand extraction itself became a rentier privilege granted by the central and regional authorities as part of the clientelist politics of the king-controlled *Makhzen*. Thereby, while the shift in political settlement did not affect the legal framework, it very much impacted on its implementation and on the informal rules pertaining to quarry operations, particularly in the next phase.

4.3. Moroccanization and clientelist sand extraction privileges (1973–1983)

After two coup attempts in early 1973, the Moroccanisation policy initiated by king Hassan II. The most significant symbol of this Moroccanisation process was the transfer of the Omnium Nord-Africain (ONA) company, a key player in the extractive industries in the country, to the royal family (Hatton, 2009; Saadi, 2016). While playing on a nationalist sentiment, the policy aimed to integrate horizontal outsider elites more closely with the political settlement, at the same time allowing the king to gain more control over the economic affairs and to reward key elites (Clark, 2018; Willis, 2014). In the midst of a phosphate boom-triggered public spending spree lasting up to 1975, Hassan II focused on urban development to try to assuage the rising bourgeoisie there. However spending was concentrated on agricultural dams, social programs and large-scale infrastructure was not yet a key component of this urban development strategy (Bogaert, 2018; Sweringen, 1985). As a result, limited changes to sand law were envisioned, while sand extraction practices did shift as urban development made sand extraction a lucrative privilege within the rentier economy.

In regard to sand, high ranking army personnel became key beneficiaries of the new policy, as they gained control over illegal beach sand mining in our case study area. Given the role the military played in the coup, Hassan II made an effort to tie the military 'more closely to the system through gifts of land and privileges to senior officers, thus compromising them as potential critics of a system from which they themselves were benefiting' (Willis, 2014, p. 93; see also: Miller, 2013; Vermeren, 2016). Beaches are mostly state-owned, which made it relatively easy to open them up for rentier sand mining by *Makhzen* elites.⁵ Further governance shifts would occur in the 1980s, but these military elites would maintain their position until 1999 and the *Gouvernement de L'Alternance* (GdA). The prevalence of illegal sand mining, while it of course broke state law, did not go against the interests of the political settlement. Illegal sand mining rather played a crucial role in strengthening the settlement by enabling rent-seeking by horizontal elites, part of the political settlement. All this was enabled by the central role of, and the King's power over the Ministry of the Interior, as it controlled public works, urban development and monitoring of sand quarry operations (Waterbury, 1975).

4.4. Structural adjustment, urban development (1983–1999)

By the mid-1980s, a debt crisis triggered by phosphate prices falling 47 per cent compared to 1975, the 1981 drought and the second oil shock pushed the authorities to adopt a Structural Adjustment Program characterized by austerity in public spending and the privatization of state enterprises (Seddon, 1989). Many sectors were opened to private investment such as education, health, urban and interurban transports, and mines (Debenne, 1990; Morisson and Jeanneret-Amour, 1991). However, under king Hassan II, the monarchy not only 'kept political control over the sales and the whole process of privatization [...] newly established institutions with direct links to the monarchy expanded the latter's control in economic affairs' (Bogaert, 2018, p. 75), which included interventions in large-scale infrastructural projects later. While

⁴ It should be noted that the legal arrangement and institutional management of mining activity was separated from the framework regulating and governing sand quarries via the 1928 creation of the Bureau de la recherche et de participation minières (BRPM), which initially only focused on fossil fuels and, at independence, the 1957 creation of the Ministry of Energy and Mines.

⁵ Interview with a regional employee of the administration of Equipment (I1).

the political settlement and the elites at its heart did not change radically during this period, the period saw the initiation of the formation of new elites and the re-emergence of infrastructural development, both of which have shaped the story of sand after the death of Hassan II in 1998.

Sand extraction and its potential impacts attracted the interest of public authorities only in the mid-1980s, following debates in Europe, and especially France, over the extraction of coastal sand.⁶ Instructions were issued by the public works department to close most of the beach quarries north of Salé. This shift also reveals the scrutinization of sand extraction that led gradually to changes in the nature of the sand elite. Under the (vertical) protection of the former military, a group of people had started to participate in the sand business, initially as quarry managers. First taking advantage of the opening of the economy in the 1980s (and later of the GdA) these people were able to navigate the shifting political settlement best. The decision to close illegal beach sand mining operations convinced sand entrepreneurs from this emerging class of sand businessmen to move to the Chelihat area, where some had bought land.⁷ The security force personnel under direct *Makhzen* protection, would occupy communal land and continue their activities there.

The different types of land ownership are important to note at this stage. Morocco inherited three main types of land property regimes from the French Protectorate period: state ownership, collective ownership and private ownership ((Balgey, 2015; Balgey and Rignall, 2021; N. C. Bouderbala et al., 1974; Pascon, 1977)⁸. State land accounts for nearly a third of all land in Morocco, and, as was noted above, beaches (up to 400 metre inland) where most important illegal sand extraction has unfolded are mostly state owned. In our case study area collective/-communal (tribal) land ownership is the norm and is most valued within the local moral economy. Its expropriation for private sand extraction, instead of its use for collective benefit, was thus not only against the law but also against local sensibilities. Moreover, two types of private property regimes coexist: *Melk*, with Islamic law as a legal basis, favours patriarchal family ownership rather than individual ownership; registered (immatriculé) land, is a legacy from the French colonial administration which granted private titles to French business interests and local elites (Balgey and Rignall, 2021; N. Bouderbala, 1999; Bourqia, 1989) over expropriated land formally collectively owned. It is on such registered land that the new class of sand businessmen settled.⁹

While the quarries owners acquired this land fully legally, the French land deeds themselves have a history rooted in expropriation. The colonial authorities indeed 'enacted a massive project expropriating or otherwise transferring land for the benefit of European settlers, business interests, and Moroccan notables' (Balgey and Rignall 2021: 188; see also Bouderbala, 1996). Like in many other parts of Morocco, expropriated collective lands were targeted for private development or state projects. While many of the French land deeds were geared towards European interests, some local notables also benefited from this privatization process. As such, like public works, the privatization campaign and the creation of a set of clientelist ties played a crucial role in the establishment of the Protectorate settlement.

The relatively easy acquisition of private land was possible because former owners did not see this sandy land as valuable, whereas new

owners knew its potential in the sand economy.¹⁰ It is revelatory that these people decided to buy land rather than simply occupy communal land, as others who shifted from the beach sand mines have done. The latter bosses just built on their horizontal relations to ensure they could still extract sand. In contrast, the new businessmen were in a vertical position and needed an alternative source of stability, and found it in private land titles.

Respondents¹¹ indicated that during this time sand was over-exploited in the Chelihat region. They also told us that the legal framework in place was not respected. There was little oversight over activities, given the key role state elites and their direct clients continued to play in the process of sand extraction (both legal and illegal). More than 700 trucks and trailers would come from all over Morocco to load sand each day. Our respondents argued that the majority were stole sand from open and unsupervised quarries.¹² Some interviewees claimed that there were over 48 authorized quarries at the time. Yet, while these quarries were state-sanctioned, they did not adhere basic legal requirements. The ability to benefit from sand quarries at this stage was still purely dependant on the power and resources of each individual actor, connections to the regime first and foremost. So while illegal beach sand mining seems to have been reduced at this stage, sand still played a role as providing a resource base for elite clients, including both the older (military) sand bosses, as well as for the new class of sand businessmen emerging in their wake.

The structural adjustment period thus was one of shifting coalitions, on the one hand re-presented by the continued importance of military elites, while at the same time, a new elite was being formed, which while grasping opportunities at this stage, would only be integrated more fully after the death of Hassan II.

4.5. *Gouvernement de l'alternance and the re-emergence of sand law (implementation) (1999-now)*

Before the death of King Hassan II, he had enabled a range of re-negotiations of the relation between the institutional role of the king and the political parties (Khatibi, 1998; Leveau, 1997). The GdA embodied this shift (Miller, 2013). At the same time, some of the elites and projects that had emerged in the 1990s now took centre stage (see e.g. Barwig, 2012; Benhadou, 1997; Boukhers, 2011). Old elites from the security forces, now came under pressure of new entrepreneurs as the new king, Mohammed VI, embarked on a project of large-scale infrastructural development. Infrastructural development and mega-projects became central elements in the new King's vision for economic development, itself aligned with discourses from international organisations (Bogaert 2018). This led to a 'pluralisation of power relations' (Philifert, 2014, p. 73) and efforts at dismantling the all-powerful Ministry of the Interior - including by launching a separate urban planning ministry - which nonetheless remained a player in launching and patronizing large-scale infrastructure (Bogaert, 2018).

With the shift in political settlement, away from the military elites which had dominated under Hassan II, and the renewed interest in infrastructural (urban) development as a central ideological tennet of the new settlement, space opened up to revisit sand law under the Youssoufi *Gouvernement de l'Alternance* (GdA, 1998–2002). In line with objectives to 'modernize' the Moroccan state, GdA focused on restructuring state administration. This included the reorganizing of the construction and public works sector and that of the supervision, organization and control of sand quarries (Dahir 130.02.1 / Law 08.01,

⁶ Interview with a former regional manager of the equipment department who witnessed the closure of several quarries in this context. Interestingly, he later he became the Councillor of quarry owners, and president of their association of Environment.

⁷ Ibid.

⁸ Two other types exists which are less important, both for our discussion and in general, Habous land are endowments to religious institutions. Guiche land are the result of historical endowments of land for military service. Both only represent a relatively small portion of overall land in Morocco (Balgey, 2015).

⁹ Interview with a ethnical local quarry owner not authorized to operate anymore because his quarry reached the leveling prescript for digging. (14)

¹⁰ Interview with a politician and owner of farm in this area (13); and with Interviewee (12)

¹¹ Interview with regional employee of the administration of Equipment; the former regional employee and the politician.

¹² Interviews with a sand activist; a regional manager from the Regional Directorate of Equipment; a politician residing in the area; and a quarry owner.

13 June 2002). This marked a watershed in the management of sand extraction, regulation, and oversight, as it closely linked sand exploitation with environmental consequences such as negative impacts on maritime and forest environments.

In the end however, the Executive Decree of the law 08.01 (2002) on the management and regulation of exploitation of sand quarries, necessary to also enact change on the ground, ended up being 'buried' by governmental procedures that left it inapplicable as it was not published in the Official Bulletin. This should be understood as the result of *Makhzen* logics still operating under an emerging political settlement (see also: Roussillon and Ferrié, 2018). Some of those engaged in legal quarry operations criticized the political class for creating an unclear and chaotic situation in the sand business, including in Chelihat.¹³

While they were not able to push through the legal changes, the *Gouvernement de l'alternance* in 1998 opened up space for the implementation of existing sand law and the effective expulsion of military elites who had dominated the sector since 1973.¹⁴ Given the infrastructure boom at the time, sand had attracted public attention and its extraction was considered to be directly related to the rentier state, with the military and administrative elites under the patronage of the *Makhzen* as its main beneficiaries ("L'extraction Du Sable: La Poule Qui Ponde de l'Or," 2021; "Safi : La Guerre Du Sable," 2005). As the establishment of the new political settlement needed to erode the power base of the *Makhzen*, which had been the key element in the political settlement since independence, opportunities to reduce the role of the *Makhzen* clients in the sand business opened up.

Under GdA, the regional director of equipment in Kenitra at this time was first able to stop, in collaboration with the governor of Kenitra province, issuing new licences, which had increased to almost fifty as mentioned above. An ex-member of the regional directorate of equipment explained to us how the director was even able to resist his hierarchical superior, the Minister of Equipment and Transport, after he had travelled from Rabat to Kenitra with a notable politician who wanted to obtain a quarry permit. In a next step the regional director and governor were able, in collaboration with the provincial quarry commission, to halt extraction at all quarries located on collective land in 1999. Although these lands were meant to be under tribal authority and exploited for the benefit of nearby communities, as part of patronage politics they had been controlled by the senior civil servants and military officers we discussed above.¹⁵ Interestingly, the operators closed them without any resistance, following oral instructions they received from the regional administration.

These transformations would forbode the Arab Spring and the Moroccan 20 February movement, which furthered the debate on the rentier economy and the privileges enjoyed by certain families close to the *Makhzen*, in particular senior officers (see e.g. Ameziane, 2015; Catusse and Vairel, 2010; Vairel, 2014). The Arab spring's February 20 movement would further pressuring for political reform and social justice, leading to the Islamist Justice and Development Party (PJD) winning the 2011 elections and starting an anti-corruption campaign and maintaining efforts to erode the role of the Ministry of the Interior (for a discussion, see: Lefevre, 2013). It is interesting that the 2011 government specifically denounced the beneficiaries of sand quarries and published lists of quarry owners to denounce the rentier economy (Harmach, 2012). It is quite interesting that quarry owners were singled out particularly as a consequence of their central role in clientelistic politics under the *Makhzen* political settlement.

As part of these re-alignments and the denunciation of *Makhzen* elites, a new sand law was finally adopted (Dahir no. 1.15.66 / Law 27.13, 9 June 2015). A comparative reading of this law and the previous

one reveals no significant changes. There were only a few minor modifications, such as the extension of the time limit for compliance with the new law by operators, from six months to three years. Other changes included the addition of Articles 64 and 65 stipulating that the administration must disclose new and closed quarries yearly.

The lack of substantial differences between the shelved 2002 law and the 2015 one, shows that its adoption was due to the changed political climate, rather than content. The long delay before the adoption and publication of the 2015 law pertaining to sand quarries reflects the influence that lucrative sand extraction trade had over state authorities.¹⁶ The introduction of the 2015 law should also be seen in the context of the political conflict that emerged during Arab Spring struggles between the Islamist government and pockets of resistance in the *Makhzen* administration, in particular the Ministry of the Interior. This partakes in a longer process where the 1999 GdA had already began to erode some of the features of the rentier economy associated with state patronage (Youssofi, 2020). This is also clearly reflected in the reconfiguration of the relationship between the Ministry of the Interior and the Ministry of Equipment. While not an important Ministry until the establishment of the Islamic government in 2011, the Islamist party-controlled the Ministry of Equipment gained oversight over prerogatives previously held by the Ministry of the Interior, including quarry licensing and control. Licenses are increasingly difficult to obtain given the huge amount of money required for the warranty.

5. Pre-empting contestation: state networks and the integration of local communities

Although the combination of quarry licenses and private land deeds seem to have stabilized the extraction environment, sand extraction remains a tenuous business, exemplifying that the transformation from one political settlement to the other is far from linear. The French protectorate land policies created the conditions leading to the emergence of a new class of sand businessmen, who do maintain close relations with the contemporary administration. While these people operate with legal licenses, this does not guarantee that all protocols are strictly followed. For instance, while we conducted interviews with members of ministries and their regional representatives, we were never showed, despite repeated requests, the paper trail that should accompany the operation of legal quarries (including environmental impact assessments, monthly and biannual extraction reports or minutes from quarry inspections).

The sand businessmen in our case study area were actively trying to pre-empt contestation, first from the state. It was quite clear that the current sand businessmen were in a very different (vertical) position than those, associated with the *Makzen* in the 1970s who could count on their role in the horizontal organisation of the political settlement to pre-empt contestation. We were told that at this moment one influential quarrying family in Chelihat played a key role in managing relations with the Ministry of Equipment. Relatedly, the quarry owners organized themselves into the *Association Sable et Environnement* (Sand and Environment Association) in 2005. The Ministry was involved in creating this organisation which aims at countering any allegation that quarry operations could lead to environmental degradation, showing the shared interest of ministry and quarry operators.

Protest by local communities has also been considered as a key threat, against which mitigating action had to be taken. It was feared that community protest against the quarries, might convince the administration to stop renewing permits, especially in the period after the GdA came to power when many social movements emerged and protests erupted frequently (for an overview, see: Bogaert, 2015).

¹³ Interview with quarry owner association president.

¹⁴ Ibid.

¹⁵ Interview with the former employee of the regional directorate of Equipment.

¹⁶ That said, we should not overstate the impasse as a 2010 circular of the prime minister office had already loosely defined quarry exploitation procedures, including environmental procedures, and acknowledged the growth of illegal quarries (N°6/2010, 14 June 2010).

Moreover, private land ownership is still associated with French-driven expropriation (see above). Local communities still considered themselves as the moral owners of these lands, although they lost de facto ownership long ago.¹⁷

Quarry owners initially compromised with nearby communities by hiring them for achieving loading and levelling operations and as truck drivers or guards, establishing a vertical, clientelist relationship. As mechanization greatly diminished local opportunities, the quarry owners later agreed to pay and informal lump sum of 150 dirham (\$16.18) per 17 m³ truckload of sand. Such royalties are distributed to the population through their tribal representative. As this representative remains central to the management of communal land, this mechanism attests that aspects from communal land management remains present under the private ownership regime. Each individuals in a group now receives up to \$16.18 (150 dh) through the system every three weeks. In contrast, neighbouring communities were paid double this amount (300 dirham or \$32.36 per 17 m³ truckload), prior to the enactment of a tax on sand (dirham 50 or \$5.39 per truckload of 17 m³ truckload) under the 2013 finance law.¹⁸

While one could expect protest to erupt over the reduced amount now offered, little contestation emerged over this issue, due a number of reasons. First, quarry owners over the course of time became better acquainted with the local communities, and did they use some of their financial resources to contribute to charitable actions, most importantly for weddings and funerals, while also providing loans for home improvement, allowing them to lift their moral and social standing as well as operating as patrons. Second, members of these neighbouring communities were well aware that they were not legally entitled to the money they received. As this was a sort of bribe, protest might in turn lead to the termination of such payments. Third, the quarry owners' association close relations with the Ministry of equipment and the administration in general gave them greater security. Finally, the enactment of a tax on sand extracted gave state legitimacy to the business. Taxation provides a clear recognition of the state of the formal nature of the sand quarries, thus enabling them to lower their informal payments inherited from a period in which the legal nature of sand extraction was questioned. One could argue that while quarry owners initially had to manage their vertical relationship downward (with neighbouring communities), their better integration in a vertical network upward (with state officials), allowed them to downsize their responsibilities to the neighbouring communities.

6. Conclusion

Sand scholarship often adopts a singular focus on illegality and mafia and it is our opinion that replicating such an approach would silence the historical transformations of sand extraction in Morocco and its relation to political settlements at the centre of the regime. We showed that sand law been greatly affected by changes in political settlements, and sand extraction in our case study area has gone through even more regimes. It moved from fully illegal operations controlled by Makhzen elites, to relatively unchecked exploitation on both private and communal land by direct Makhzen elites and an emerging class of sand businessmen, while contemporary extraction is now dominated by private land-based legally licensed quarries. All of these changes depended on specific national political settlements. Likewise, how elites have been integrated as clients into these systems yielded changes in sand law and sand extraction practices necessary for extraction to proceed.

¹⁷ Interview with a politician and proprietor of a farm in the area; with a local former quarry owner; With an owner of transporter boat on the river; and with a local woman aged about 75 years.

¹⁸ Interview with an old woman who confirmed she receives this amount and that the owners of the quarries are always generous with the communities. Also the politician confirmed this.

Sustainable sand governance is therefore not so much dependant on getting the law right, but rather about the political settlement which enables a particular configuration of relations between political and economic elites (see also: Bebbington et al., 2018, p. 8). Policy intervention focusing simply on criminal extraction might miss the real opportunities for incremental (and probably painstakingly slow) change. International efforts to move towards more sustainable sand governance, would have to think strategically about which networks within the political settlement could be amendable to their suggestions.

Finally, as our case shows, political settlements are always palimpsests, as they overwrite but not completely erase the rationalities and sets of relations that guided the extractive sector under previous settlements. The French land deeds are an example, and so is the long-standing moral claims that neighbouring communities exerted over tribal/common land after privatization, and through which they could legitimately claim compensation. Likewise, the informal practices linked to the political settlement under the long reign of Hassan II might have waned, but informal practices have far from disappeared nowadays.

Mohammed VI, threatened by calls for constitutional democracy, has continued to show his versatility when dealing with the various threats his position faced (see Daadaoui, 2011), while the Islamist governments remained unstable until their defeat in 2020 and 2021. This is when the National Rally of Independents Party gained power, led by billionaire Aziz Akhannouch, whose father made fortune the hydrocarbons industry. The political settlement has thus far from stabilized. The story of sand is too intertwined with the story of the Moroccan state, and is too far from stabilized.

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